

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER 2. CONTRACT NUMBER 3. AWARD/EFFECTIVE DATE 4. ORDER NUMBER 5. SOLICITATION NUMBER 1305M326Q0303 6. SOLICITATION ISSUE DATE 07/15/2026 7. FOR SOLICITATION INFORMATION CALL: a. NAME SARA BRUNSTETTER b. TELEPHONE NUMBER (No collect calls) 2065264397 8. OFFER DUE DATE/ LOCAL TIME 07/29/2026 1400 ED		9. ISSUED BY CODE WAD-NWS WAD-NWS 7600 SAND POINT WAY NE BLDG 1 SEATTLE WA 98115 10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00% FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN ☐ HUBZONE SMALL BUSINESS ECONOMICALLY INDUSTRY CLASSIFICATION ☐ SERVICE-DISABLED ☐ DISADVANTAGED STANDARD (NAICS): ☐ VETERAN-OWNED WOMEN-OWNED SMALL 561730 ☐ SMALL BUSINESS (SDVOSB) ☐ BUSINESS (EDWOSB) SIZE STANDARD: 8(A) \$9.5 11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE 12. DISCOUNT TERMS 13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) 13b. RATING 14. METHOD OF SOLICITATION REQUEST ☒ FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)			
15. DELIVER TO CODE WP923504 JACKSON WFO MISSISSIPPI 234 WEATHER SERVICE DRIVE JACKSON MS 39232		16. ADMINISTERED BY CODE WAD-NWS WAD-NWS 7600 SAND POINT WAY NE BLDG 1 SEATTLE WA 98115			
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE TELEPHONE NUMBER		18a. PAYMENT WILL BE MADE BY CODE 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	UNIQUE ENTITY ID _____ CAGE CODE _____ Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)				
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)	
27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ☒ ARE ☐ ARE NOT ATTACHED 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED: _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print) CASEY MORRISON		31c. DATE SIGNED

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	QUOTERS MAY SUBMIT THE QUOTE ON THIS SF-1449 FORM OR THEIR OWN COMPANY FORM. QUOTES WILL BE EVALUATED BASED ON RFO 52.212-2 IN ATTACHED CLAUSES & PROVISIONS. VENDORS WHO DO NOT PROVIDE ALL EVALUATION CRITERIA WILL NOT BE ACCEPTED. THE QUOTER MUST BE CURRENTLY REGISTERED IN THE SYSTEM FOR AWARD MANAGEMENT (SAM.GOV) TO BE ELIGIBLE FOR AN AWARD. QUOTES RECEIVED FROM CONTRACTORS WHO ARE NOT ACTIVE IN SAM WILL NOT BE CONSIDERED. TOTAL SMALL BUSINESS SET-ASIDE, FIRM-FIXED PRICE PURCHASE ORDER TO BE AWARDED TO THE LOWEST PRICED, TECHNICALLY ACCEPTABLE QUOTE. WAGE DETERMINATION 2015-5153 REV 30 DATED 05/13/2026 IS APPLICABLE TO THIS RFQ. BASE PERIOD SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, Continued...	12	MO		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1001	IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK. FIRM-FIXED PRICE OPTION YEAR 1 SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK. FIRM-FIXED PRICE	12	MO		
2001	OPTION YEAR 2 SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK. FIRM-FIXED PRICE	12	MO		
3001	OPTION YEAR 3 SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK. FIRM-FIXED PRICE	12	MO		
4001	OPTION YEAR 4 SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND Continued...	12	MO		

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK. FIRM-FIXED PRICE				

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Section 2 - Combined Synopsis/Solicitation

COMBINED SYNOPSIS/SOLICITATION

Landscaping Services at the National Weather Service (NWS) Forecast Office (WFO) in Jackson, MS.

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with Revolutionary FAR Overhaul (RFO) Part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued.

Solicitation number 1305M326Q0303 is issued as a request for quotation (RFQ), for landscaping services in Jackson, MS.

This acquisition is set-aside for small business concerns. The associated NAICS code is 561730. The small business size standard is \$9.5M.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

See attached Statement of Work and Department of Labor Wage Rates: Wage Determination WD 2015-5153, Revision No. 30, dated 5/13/2026, which can be found on: <https://sam.gov/content/wage-determinations>

IMPORTANT: The Instructions can be found in the RFQ under Section 6 that explains exactly what quoters need to submit. The corresponding Evaluation criteria can be found in Section 7.

Period of performance is: (subject to change based on award date)

Base Year: 08/01/2026 - 07/31/2027

Option Year 1: 08/01/2027 - 07/31/2028

Option Year 2: 08/01/2028 - 07/31/2029

Option Year 3: 08/01/2029 - 07/31/2030

Option Year 4: 08/01/2030 - 07/31/2031

Place of Performance is:

National Weather Service Office,
234 Weather Service Drive,
Jackson, MS 39232

Questions regarding the solicitation should be submitted electronically to sara.brunstetter@noaa.gov and casey.morrison@noaa.gov and are due no later than **1400 ET on 07/22/2026**.

Site visits are encouraged and permitted until **1400 ET on 7/22/2026**. Refer to the Statement of Work for points of contact to set up the site visit.

Quotes are required to be received in the contracting office no later than **1400 ET on 07/29/2026**. All quotes must be submitted electronically via email to sara.brunstetter@noaa.gov and casey.morrison@noaa.gov.

INVOICES TO BE BILLED MONTHLY IN ARREARS VIA IPP. QUOTE PRICING MAY BE PROVIDED ON ATTACHED SF-1449 FORM OR ON COMPANY LETTERHEAD.

THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST AND RECEIVE A CONFIRMATION OF THE QUOTE RECEIPT.

Per NOAA Deviation 2025-02/03: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Contracting officers will not consider those representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Section 3 - Line Items and Attachments

List of Line Items

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	BASE PERIOD	12	MO		
	SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK.				
1001	FIRM-FIXED PRICE	12	MO		
	OPTION YEAR 1				
	SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK.				
	FIRM-FIXED PRICE				
2001	OPTION YEAR 2	12	MO		
	SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK.				
	FIRM-FIXED PRICE				
3001		12	MO		

Item Number	Description	Quantity	Unit	Unit Price	Amount
	OPTION YEAR 3				
	SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK.				
	FIRM-FIXED PRICE				
4001			12 MO		
	OPTION YEAR 4				
	SERVICES, NON-PERSONAL, TO PROVIDE ALL SUPERVISION, LABOR, TOOLS, MATERIALS AND EQUIPMENT (UNLESS OTHERWISE PROVIDED HEREIN) NECESSARY TO PROVIDE LANDSCAPING SERVICES AT THE NATIONAL WEATHER SERVICE (NWS) WEATHER FORECAST OFFICE (WFO) LOCATED IN JACKSON, MS, IN ACCORDANCE WITH THE ATTACHED STATEMENT OF WORK.				
	FIRM-FIXED PRICE				

List of Attachments

Attachment Number	Title
1	Statement of Work - Landscaping for WFO Jackson, MS
2	Wage Determination 2015-5153 Rev 30

Section 4 - Contract Terms and Conditions

RFO 52.203-17 Contractor Employee Whistleblower Rights. (NOV 2023)

RFO 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)

RFO 52.204-9 Personal Identity Verification of Contractor Personnel. (JAN 2011)

RFO 52.204-13 System for Award Management-Maintenance. (OCT 2018) (Deviation JAN 2026)

RFO 52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (Deviation JAN 2026)

RFO 52.209-10 Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation JAN 2026)

RFO 52.212-4 Terms and Conditions-Commercial Products and Commercial Services. (NOV 2023) (Deviation JAN 2026)

RFO 52.219-6 Notice of Total Small Business Set-Aside. (NOV 2020) (Deviation JAN 2026)

FAR 52.222-3 Convict Labor. (JUN 2003)

RFO 52.222-19 Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation JAN 2026)

RFO 52.222-36 Equal Opportunity for Workers with Disabilities. (JUN 2020) (Deviation JAN 2026)

FAR 52.222-41 Service Contract Labor Standards. (AUG 2018)

FAR 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (AUG 2018)

RFO 52.222-50 Combating Trafficking in Persons. (OCT 2025) (Deviation JAN 2026)

RFO 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026. (JAN 2022)

FAR 52.222-62 Paid Sick Leave Under Executive Order 13706. (JAN 2022)

RFO 52.222-90 Addressing DEI Discrimination by Federal Contractors (APR 2026) (DEVIATION April 2026)

RFO 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts. (MAY 2024) (Deviation JAN 2026)

RFO 52.223-5 Pollution Prevention and Right-to-Know Information. (MAY 2024)

RFO 52.225-3 Buy American - Free Trade Agreements - Israeli Trade Act. (NOV 2023) (Deviation JAN 2026)

RFO 52.226-8 Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)

RFO 52.232-33 Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)

RFO 52.232-40 Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)

RFO 52.233-3 Protest after Award. (AUG 1996) (Deviation JAN 2026)

RFO 52.233-4 Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation JAN 2026)

RFO 52.237-2 Protection of Government Buildings, Equipment, and Vegetation. (APR 1984)

RFO 52.240-91 Security Prohibitions and Exclusions. (Deviation JAN 2026)

RFO 52.244-6 Subcontracts for Commercial Products and Commercial Services. (OCT 2025) (DEVIATION April 2026)

CAR 1352.201-70 Contracting Officer's Authority. (MAR 2010)

CAR 1352.209-73 Compliance with the laws. (APR 2010)

CAR 1352.209-74 Organizational conflict of interest. (APR 2010)

Standard Language UTILIZATION OF FEDCONNECT FOR CONTRACT ADMINISTRATION

The Department of Commerce will utilize the FedConnect® web portal in administering this award. The contractor must be registered in FedConnect® and have access to the FedConnect® website located at <https://www.fedconnect.net/Fedconnect/>. For assistance in registering or for other FedConnect® questions please call the FedConnect® Help Desk at (800) 899-6665 or email at support@fedconnect.net. There is no charge for registration in or use of FedConnect®.

RFO 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 5 days.

(End of clause)

Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is for use by the Government as outlined at FAR 37.111, Extension of Services. The option will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise.

If the Government fails to extend the term of the contract within the period identified and the Government has provided a written notice to the Contractor that the action is undergoing review in accordance with Department of Commerce procedures for implementing Executive Order 14222 the contractor shall stop all work and incur no costs to be charged to the Government. Once the

Department of Commerce's review process has occurred, the Government will notify the contractor if the option may be exercised or not.

RFO 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days of contract expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension. If the Government fails to extend the term of the contract within the period identified and the Government has provided a written notice to the Contractor that the action is undergoing review in accordance with Department of Commerce procedures for implementing Executive Order 14222 the contractor shall stop all work and incur no costs to be charged to the Government. Once the Department of Commerce's review process has occurred, the Government will notify the contractor if the option may be exercised or not. The Government will then extend the term of the contract with a bilateral modification.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of clause)

RFO 52.222-42 Statement of Equivalent Rates for Federal Hires. (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It Is Not A Wage Determination

Employee class Monetary wage - Fringe benefits

WG3 Laborer, Grounds Maintenance \$15.71 - \$20.42

(End of clause)

RFO 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/index.html>

(End of clause)

RFO 52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulation (48 CFR 1352) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term "contractor employees," as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

- Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;
- The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient's sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include,

but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.

2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.

3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.

4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.

5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).

6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within [] business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at

<https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial>. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

- Phone: 1-866-288-6558
- Website & Online Chat: <https://www.noasashhelpline.org/>
- Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)
- Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. "Confidentiality" means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;
2. Requiring the contractor to terminate a subcontract;
3. Suspension of contract payments until the Contractor has taken appropriate remedial action;
4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;
5. Suspension or debarment; or
6. Other appropriate action.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: [Contracting Officer list required invoice attachment(s); none if left blank].

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS

(a) A contractor employee shall be identified both by the individual's name and the contractor's name when:

- Included in NOAA's locator, and

- When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-PERSONAL SERVICES CONTRACT (SEPT 2017)

(a) The Government and the contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the contractor's personnel. It is, therefore, in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

1. Be placed in a position where they are under relatively continuous supervision and control of a Government employee.
2. Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the contractor or the contractor's personnel to exercise personal judgment and discretion on behalf of the Government. Rather, the contractor's personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems, or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

1. The contractor shall notify the contracting officer in writing within 5 business days from the date of any situation or occurrence where the contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or contractor employee involved or knowledgeable about the situation or occurrence, provide any

documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.

2. The contracting officer will review the information provided by the contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the contractor. The contracting officer's response will provide a decision on whether the contracting officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-72 CONTRACTOR ACCESS TO NOAA FACILITIES (SEPT 2017)

(a)

1. The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members ("contractor employees") to have access to and to the extent authorized, mobility within, a NOAA facility.

2. NOAA may close and or otherwise deny contractor employees access to a NOAA facility for a portion of a business day or longer for various reasons including, but not limited to, the following events:

- i. Federal public holidays for Federal employees in accordance with 5 U.S.C. 6103;
- ii. Fires, floods, earthquakes, and unusually severe weather, including but not limited to snow storms, tornadoes, and hurricanes;
- iii. Occupational safety or health hazards;
- iv. Lapse in Appropriations; or
- v. Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason.

3. In such events, the contractor employees may be denied access to a NOAA facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.

(b) In all instances where contractors are denied access or required to vacate a NOAA facility, in part or in whole, the contractor shall be responsible to ensure contractor personnel working under the contract comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the COR, which could include continuing on-site performance during the NOAA facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off- site if possible or reassigning personnel to other activities if appropriate.

(c) The contractor shall be responsible for monitoring the Office of Personnel Management at opm.gov, the local radio, television stations, NOAA web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

(d) For the period that NOAA facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—

1. Adjust the contract performance or delivery schedule for a period equivalent to the period the NOAA facility was not accessible;
2. Forego the work; or
3. Reschedule the work by mutual agreement of the parties.

(e) Notification procedures of a NOAA facility closure, including contractor denial of access, are as follows:

1. The contractor shall be responsible for notification of its employees of the NOAA facility closure to include denial of access to the NOAA facility. The dismissal of NOAA employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a NOAA facility closure in which contractors are denied access. Moreover, the leave status of NOAA employees shall not be conveyed or imputed to contractor personnel. Accordingly, unless a NOAA facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.
2. Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require access to Government facilities, active administration by Government personnel or the use of Government resources in a manner that would cause the Government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery. Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to NOAA facilities. CORs will also coordinate directly with facility management or physical security personnel at respective locations to ensure that the names of contractor personnel requiring access to Government facilities during the lapse in appropriations are provided to physical security personnel.

Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize Government resources in a manner that would incur any additional obligation of funding on behalf of the Government during the lapse in appropriation.

3. Unless otherwise specified within the contract award, contractors requiring access to NOAA facilities outside normal business hours or outside the normal workweek shall submit a written request in writing through the COR to the contracting officer. The written request shall provide justification supporting the

required access and be submitted [] hours/days (contracting officer insert number of days. If blank, 72 hours applies) before access to the NOAA facility is needed.

(End of solicitation and contract language)

Section 5 - Other Contract Terms and Conditions

PROVISIONS LIST

RFO 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. (JAN 2017)

RFO 52.204-7 System for Award Management-Registration. (NOV 2024) (Deviation JAN 2026)

RFO 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (FEB 2016) (Deviation JAN 2026)

RFO 52.225-4 Buy American - Free Trade Agreements - Israeli Trade Act Certificate. (NOV 2023) (Deviation JAN 2026) - Alternate II (JAN 2025)

RFO 52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (Deviation JAN 2026)

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

RFO 52.217-5 Evaluation of Options. (JUL 1990) (Deviation JAN 2026)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s).

RFO 52.237-1 Site Visit. (APR 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

Site visits are permitted until the end of the Q&A period of the solicitation July 22, 2026 at 14:00 ED. Please refer to the statement of work to set up a site visit.

(End of provision)

RFO 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text

available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far/index.html>

(End of provision)

RFO 52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (48 CFR chapter 1352) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

CAR 1352.215-72 Inquiries. (APR 2010)

Quoters must submit all questions concerning this solicitation in writing via email to sara.brunstetter@noaa.gov and casey.morrison@noaa.gov. Questions should be received no later than Wednesday, July 22 at 1400 ED. Any questions asked on the site visit must be submitted in writing via email to receive an official response.

Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. Even if provided in other form, only the question responses included in the amendment to the solicitation will govern performance of the contract.

(End of clause)

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:
Casey Morrison
casey.morrison@noaa.gov

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address:
Noah Nielsen
noah.nielsen@noaa.gov

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

Section 6 - Instructions to Offerors

Addendum to RFO 52.212-1 Instructions to Quoters-Commercial Products and Commercial Services (Sep 2023) (Deviation Jan 2026)

NOTICE TO QUOTERS: Instructions for submitting quotations under this request for quote must be followed. Failure to provide all information to aid in the evaluation may be considered non-responsive. Quotes that are non-responsive may be excluded from further evaluation and rejected without further notification to the quoter.

1. Email quotes are required and should be sent to sara.brunstetter@noaa.gov & casey.morrison@noaa.gov. Submit PDF or Microsoft Word quotes before the date and time specified in the solicitation.
2. Quoters shall have an active registration in the System for Award Management (<https://sam.gov/content/home>) in order to provide a quote and be eligible for award.
3. Quotes shall include:
 - * Signed copies of the SF-1449 to acknowledge the solicitation and any applicable amendments.
 - * Quoter's Unique Entity ID (UEI) / Commercial and Government Entity (CAGE) Code from Quoter's registration in SAM.gov.
 - * Responses to each item listed below. Quoters should assume that the Government has no prior knowledge of them or their experience and capability.

Technical Capability

1. Quote shall include a statement demonstrating the quoter's capability to perform the required scope of work and understanding of the requirement. The statement must not be a reiteration of the Statement of Work. Failure to address the full requirements of the Statement of Work will be considered a fail and the quote will not be accepted.
2. To demonstrate technical capability, the quoter must submit two (2) completed experience projects for commercial or government landscaping maintenance contracts. Both projects must have been fully completed within the past three (3) years from the date of solicitation issuance and must be similar in size and scope to the requirements outlined in the Statement of Work (SOW). For each experience project provide the following information:

- client name
- phone number
- contract duration and dates
- contract # (if applicable)
- brief summary detailing the specific services performed to demonstrate similarity to this SOW.

Price:

Quotes should include best and final pricing for all labor and materials to complete the Statement of Work. Quoters must submit their price quotes in PDF or Excel format. Quotations must be firm-fixed-price and cover all costs required to complete the Statement of Work, including labor, materials, equipment, travel, supervision, training, licenses, certifications, and incidentals;

Pricing must be broken down by the monthly and yearly cost for the Base Year and each of the four (4) option years. Pricing must align with the quoter's quote submission, the Government's specifications, and all contractual requirements.

--End of Provision--

**RFO 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (SEP 2023)
(Deviation JAN 2026)**

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

- (1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.
- (2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

Section 7 - Evaluation

RFO 52.212-2 Evaluation-Commercial Products and Commercial Services. (NOV 2021) (Deviation JAN 2026)

(a) Evaluation factors.

The following factors will be used to evaluate offers:

1 - Technical Capability

2 - Price

Basis for Award

Award will be made to the responsible quoter whose quote conforms to the solicitation and represents the Lowest Price Technically Acceptable (LPTA) to the Government. Quotes will be rated with Acceptable (Pass) or Unacceptable (Fail) criteria.

Evaluation Process

- All quotes will be ranked from lowest to highest based on the Total Evaluated Price (Base Year + All 4 Option Years).
- The Government will review only the Technical Capability of the lowest-priced quote.
- If the lowest quote receives a "Pass" (Acceptable) rating, evaluation stops, and award is made to that quoter. If it receives a "Fail", the Government moves on to evaluate the next lowest-priced quote.

Factor 1 - Technical Capability:

The Government will evaluate the quoter's completed project experience on a Pass/Fail (Acceptable/Unacceptable) basis. To receive a "Pass" (Acceptable) rating, the quote must meet the following baseline requirements:

- Capability narrative demonstrating quoter's technical understanding of the SOW.
- Submission of two (2) experience projects that are 100% completed at the time of quote submission.
- Both projects must have been completed within the past three (3) years from the solicitation issuance date.
- Inclusion of all requested project information (Client name, phone number, contract # (if applicable), clear completion dates, and project descriptions).
- The project descriptions must clearly demonstrate that the completed work was similar in size (e.g., acreage/property scale) and scope (e.g., commercial/government mowing, edging, irrigation, or debris management) to the current Statement of Work.

Quotes will receive a "Fail" (Unacceptable) rating and be excluded from consideration if they omit the capability narrative, copy/paste the SOW, submit ongoing/active contracts, submit fewer than two completed projects, omit requested project details, or fail to demonstrate similar size and scope.

Price:

The quoted prices will be evaluated but not scored. The Government will evaluate the price quote for completeness and reasonableness in relation to the RFQ requirements based on the Total Evaluated

Price (Base Year plus all Option Years). Price quotes must be Firm-Fixed-Price, submitted in PDF or Excel format, and inclusive of all required costs outlined in the instructions.

(b) Options. The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of Award. A written notice of award or acceptance of a quote furnished to the successful Quoter within the time for acceptance specified in the quote, shall result in a binding contract without further action by either party. Before the quote's specified expiration time, the Government may accept a quote (or part of a quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)